BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

COURT NO. V, NEW DELHI

Company Petition No. CP (CAA)-145 (PB)/2019

CONNECTED WITH CA (CAA)-51 (PB)/2019

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Arrangements) Rules, 2016.

In the matter of Scheme of Amalgamation

OF

OSIATIC CONSULTANTS AND INVESTMENTS PRIVATE LIMITED
(Transferor Company/ Applicant Company No. 1)

WITH

APOLLO FINANCE LIMITED
(Transferee Company/ Applicant Company No. 2)

CORAM:

SHRI P. S. N. PRASAD, HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR, HON'BLE MEMBER (TECHNICAL)

Order Pronounced on:29.08.2022

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For the Applicant: Senior Advocate Sanjiv Sen, Advocate Saurabh Kalia, Advocate Rajiv Malik and Manoj Sharma PCS

For the RD: Adv. Shankari Mishra & Adv. Priyadarshini Dewan

For the OL: Adv. Hemlata Rawat and Adv. Aayushmaan Vatsyayana

For the IT Dept.: Mr. Zoheb Hossain, Sr. Standing Counsel, Parth Semwal & Vipul Agarwal, Jr. Standing Counsel

MEMO OF PARTIES

OSIATIC CONSULTANTS AND INVESTMENTS PRIVATE LIMITED

CIN: U74140DL1999PTC101345

Registered Office at 414/1, 4TH Floor,
DDA Commercial Complex, DisttCentre,
Janakpuri, New Delhi-110058

... Transferor Company/ Applicant Company No. 1

APOLLO FINANCE LIMITED

CIN: U65923DL1995PLC064163

Registered Office at 414/1, 4TH Floor,
DDA Commercial Complex, DisttCentre,
Janakpuri, New Delhi-110058

... Transferee Company/ Applicant Company No. 2

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ORDER

PER: P.S.N PRASAD, MEMBER (TECHNICAL)

1. This Joint petition has been filed by the Petitioner Companies under Sections 230 and 232 of the Companies Act, 2013, read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016, for the purpose of the approval of the Scheme of Amalgamation of Transferor Company into Transferee Company.

2. A perusal of the petition discloses that initially the First Motion joint application was filed before this Tribunal vide CA (CAA)-51(PB)2019 and based on such application, moved under Sections 230-232 of the Companies Act, 2013, directions were issued by this Tribunal, wherein the meetings of the Equity shareholders, Debenture holders, secured creditors and unsecured creditor of the Transferor Company and the meetings of the Equity shareholders, Secured creditors and Unsecured creditor of the Transferee Company was dispensed with, vide order dated 24.05.2019.

3. Thereafter 2nd motion petition was filed, vide CP(CAA)-145

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(PB)/2019, after a delay of 109 days and the petitioners have filed an application C.A. 2331 (PB)/2019 for condonation of delay in filing of the present petition. In light of various reasons stated in aforementioned application and in interest of justice, the delay of 109 days in filing second motion petition was condoned vide order dated 31.10.2019.

4. Vide order dated 05.11.2019, the petitioners were directed to carry out publication in the newspaper, "Business Standard" (English, Hindi Delhi Edition) and in addition, notices were directed to be served on to the Central Government through the Office of Regional Director (Northern Region), Ministry of Corporate Affairs, New Delhi, Registrar of Companies, NCT of Delhi and Haryana, the Income Tax Department, Official Liquidator, New Delhi, Reserve Bank of India and such other Sectoral Regulatory Authorities.

5. It is seen from the records that the petitioners have filed an affidavit dated 10.12.2019 affirming compliance of the order passed by the tribunal dated 05.11.2019. A perusal of the affidavit discloses that the petitioners have affected the newspaper publication as directed in one issue of the 'Business

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Standard" (English and Hindi Edition), Delhi on 19.11.2019. Further, the petitioners have also affirmed that the copy of petition has been duly served upon the Registrar of Companies, Reginal Director, Northern Region and Income Tax Department, Official Liquidator, Reserve Bank of India, in compliance of the order and in proof of the same acknowledgment from the respective offices have also been placed on record. The petitioner companies also confirmed that neither the petitioner companies nor their Legal Counsel has received any objection/representation from any person against the petition.

6. The Registrar of Companies in its representation dated 10.12.2019 has made the following observations:

   i. As per petition and annexures thereto, the Transferee Company was a Non-Banking Financial Company (NBFC), the Certificate of which has been cancelled by RBI vide its cancellation order dated 12.09.2018. As per Balance Sheet as on 31.03.2019 of the said company, the matter is with Appellate Authority. In this regard, the company may be asked to clarify about obtaining no objection, if any, from the RBI with regard to the proposed Scheme of Amalgamation.

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ii. It has been mentioned in the proposed Scheme of Amalgamation that a Scheme of Amalgamation and Arrangement for amalgamation of Indus Valley Investment & Finance Private Limited into the Osiatic Consultants & Investment Private Limited is presently before the Hon'ble NCLT. Similarly, the Board Report to the Balance Sheet as on 31.03.2019 of the Transferee Company reflects that a Scheme of Merger of Apollo Finance Limited (Transferee Company) into Sunrays Properties & Investment Company Private Limited is sub-judice before the Hon'ble NCLT. Therefore, the petitioner companies may be asked to clarify as to whether the effect of the Scheme of Amalgamation in the matter of Transferor Company as well as Transferee Company already pending before the Hon'ble Tribunal has been taken while determining the swap ratio for the present Scheme of Amalgamation.

7. The Regional Director filed its representation dated 05.02.2020, averring:

a. The company had issued zero % optionally convertible unsecured debenture to the tune of Rs. 1.50 cr. (1,50,000 debentures of Rs. 100) during 2010-11 and the said debenture

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were to be redeemed in three instalments of Rs. 35, Rs. 35 and Rs. 30 at the end of the 5th, 6th and 7th year. As per the terms of issue as mentioned in balance sheet as on 31.03.2019, the said option was to be exercised by the debenture holder before the due date but not before the expiry of six months from the date of allotment by giving one month prior notice. It appears that no option have been exercised.

b. Therefore, the said debenture, ought to have been redeemed during 2015-16, 2016-17 and 2017-18. It is noticed from Balance Sheet as on 31.03.2019 that the Board of Directors in their meeting held on 21.03.2017 decide to extend period of redemption to 9th, 10th and 11th years i.e. 2019-20, 2020-21 and 2021-22 respectively. The Board has violated the provisions of Rule 2(ix) of Companies (Acceptance of Deposits) Rules, 2014 by issuing convertible debentures beyond 10 years. Thereby, the company has violated the provisions of Section 73(1) of the Companies Act, 2013.

c. The paid up share capital of the company is Rs. 1.98 Cr and the company has issued unsecured debenture to the tune of Rs. 1.50 Cr but no resolution as required under section

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293(1)(d) Companies Act, 1956 was passed and no Form 23 was filed.

d. No debenture redemption reserve has been created as prescribed u/s 71 of the Companies Act 2013 read with Rule 7(c) (i) to (v) of Companies (Share Capital and Debentures) Rules, 2014 i.e. no amount of not less than 15% the amount of debentures maturing during the year ending on the 31st day of March of 2016, 2017 and 2018 were deposited on or before 30th days of April in each year of 2015, 2016, 2017 and 2018.

e. The transferor company refrained from reporting and disclosing true and fair state of affairs in the Balance Sheet as on 31.03.2019 , thus suppressing the material facts which the company was mandated to disclose by affidavit in terms of section 230(2)(a) of the Companies Act 2013.

f. The company also failed to disclose the non-redemption of debentures/ conversion into shares/ extension of period of redemption to 11 years under the "State of affairs of the company" in the Director's report annexed with Balance Sheet as on 31.03.2016, 31.03.2017, 31.03.2018 and 31.03.2019. Further, the auditor in its report dated 25.06.2018, vide clause

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8 of Annexure A to the Independent Auditor Report has stated that the company has not issued debentures but the Board in its report attached with the said balance sheet has made no comments or explanation in this regard.

g. The Transferor Company i.e. M/s Osiatic Consultants and Investments Pvt. ltd, in the instant application, has filed another 2 applications in which it is named as Transferee Company.

h. In one application, the Hon'ble Tribunal has already approved the scheme of amalgamation of M/s Indus Valley Investment and Finance Pvt. ltd as "Transferor company" with M/s Osiatic Consultants and Investments Pvt ltd as "Transferee company" in CP No (CAA) 53/(ND) /2019 connected with CA No 134/(ND)/2019 vide order dated 12.12.2019.

i. The order may alter the composition of the shareholders of M/s Osiatic Consultants and Investments Pvt ltd and assets and liabilities, net worth and valuation of assets of M/s Osiatic Consultants and Investments Pvt ltd. but no notice of the said order of the Hon'ble Tribunal was filed with MCA portal vide INC 28 of the said companies as required u/s 230(8) of the

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Companies Act, 2013 which will give effect to the Amalgamation Scheme.

j. M/s Osiatic Consultants and Investments Pvt Ltd is Transferor Company which is to be merged with M/s Apollo Finance Ltd, if approved by the Hon'ble NCLT, the shareholders of the company M/s Osiatic Consultants and Investments Pvt Ltd will be allotted shares of Apollo Finance Ltd.

k. In the event of filing of INC 28, no consent of shareholders of M/s Indus Valley Investment and Finance Pvt Ltd who will be allotted shares in M/s Osiatic Finance and Investments Pvt Ltd have been obtained for this application of merger of M/s Osiatic finance and investments Pvt Ltd with M/s Apollo Finance Ltd which is contrary to section 230(1)(b) of Companies Act 2013.

l. The shareholders of M/s Indus Valley Investment and Finance Pvt Ltd who will be allotted shares in M/s Osiatic Finance and Investments Pvt ltd are deprived off the notice u/s 230(3) of the Companies Act, 2013 which will be accompanied by statement disclosing the details of compromise or arrangement, a copy of valuation report if any and explaining the effect on creditors ,

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Key Managerial Personnel, promoters and non-promoters members and the debenture holders and effect of compromise or arrangement on any material interest of the directors or the debenture trustee and such other matters of the company .

m. 5 amalgamation applications were filed with MCA portal in respect of 13 companies in which M/s Sunray Properties and Investments Pvt ltd will emerge as single Transferee Company. Thus, by filing several applications, the impact in terms of assets and liabilities, valuation, creditors, composition of members of a company of would not reflect in other applications of scheme of amalgamation already filed with Hon'ble NCLT as either transferor or transferee companies. In the event of passing of order in one application, the new members, creditors, debenture holders of the respective Transferee company would be deprived off notice u/s 230(3) of the Companies Act 2013 if such company happened to be a Transferor company in another application and such arrangement is against the section 230(1)(b) of the Companies Act 2013 as it is not between members of the company.

8. The petitioners companies have filed their response by way of

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reply dated 27.02.2020 to the objections raised by the Regional Director and has asserted that:

i. The shareholders, debenture holders and unsecured creditors (inter-corporate deposit holders) of Applicant Company 1 had been apprised of the particulars of the Scheme and based thereon, they had provided their consent to the Scheme and for seeking the dispensation of meetings of shareholders / debenture holders / unsecured creditors, and copies of such consent affidavits were filed by Applicant Company 1 on 29.04.2019 as per the order of Hon'ble Principal Bench of NCLT, New Delhi.

ii. It is submitted that section 230(1)(b) of Companies Act, 2013 envisages a compromise or an arrangement as proposed between a company and its members / creditors. This compromise has been effected at the time of the first motion between the company and the members/creditors, upon receipt of the NOCs which were filed as per the order of the Hon'ble Principal Bench of NCLT. It is only after the said compromise/arrangement had been approved inter se between a company and its members/shareholders did it proceed

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forward for the approval of government/regulatory authorities and the sanction of the Hon'ble NCLT which is the stage at which the applicant companies stand today.

iii. The entire process for sanction of a proposed merger / compromise, owing to the time lag inherent in the process, need not necessarily include the same shareholders who had approved the said compromise / merger also being shareholders' on the record date, owing to share transfers (which are even more prominent in case of listed companies), acquisition of businesses etc.

iv. The Applicant Company no. 1 is also the transferee company under the following mergers:

a. CA(CAA) 131/ND/2019, wherein Nanak Consultants Private Limited, Kewaldeep Consultants Private Limited, Sayush Consultants and Investment Private Limited, Ganga Kaveri Credit and Holdings Private Limited, Sacred Heart Investment Company Private Limited, Kenstar Investments and Finance Private Limited merge into Applicant Company no. 1 (Other Group Scheme).

b. CA(CAA) 134/ND/2019 wherein Indus Valley Investment

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and Finance Private Limited merges into Applicant Company no. 1 (Prior Scheme).

The Scheme under this Application is subject to the Prior Scheme coming into effect (refer para 1.1(j) read with para 15 of the Scheme) and the Prior Scheme (though sanctioned by the Hon'ble NCLT, Bench III, New Delhi Bench on 12.12.2019, would only come into effect on the Other Group Scheme coming into effect.

v. The Applicant Company no. 1 has provided its changed shareholding pattern.

vi. It is further submitted that while Sunrays as a shareholder of Applicant Company no. 1 has approved the Scheme, Applicant company no. 1 and Apollo Finance who are the other shareholders in Indus Valley Investment and Finance Private Limited are involved as Applicant Company no. 1 and 2 in the present Scheme. Therefore, there is no prejudice caused to the shareholders of Indus Valley Investment and Finance Private Limited and it cannot be alleged that shareholders of Indus Valley Investment and Finance Private Limited would be deprived of any opportunity to understand the material impact

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in their interest.

vii. It is further submitted, after other Group Scheme becomes effective, Sunrays would be the sole debenture holder and also being a shareholder of the Applicant Company 1 had approved the Scheme. It is submitted, after the Other Group Scheme become effective, Apollo Finance, Osiatic and Sunrays will be the Unsecured Creditors (lenders) of the Indus and Osiatic and Apollo, are Applicant Company 1 and Applicant Company 2 of the present Scheme respectively and Sunrays, which is the other unsecured creditor (lender), has approved the present Scheme as a shareholder.

viii. In any case, on approval of all the schemes, Sunrays will emerge as the transferee entity and all the debentures will be cancelled on merger of group entities holding the debentures with other entities. It is submitted that the entities involved in all the schemes are group entities and therefore, the outcome of individual application will not mislead shareholders and debenture holders. It is further submitted that already 2 schemes involving the group entities were approved by the Hon'ble NCLT, Bench III, New Delhi.

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ix. The Applicant Company 1 submits that it has issued 1,50,000 Zero % Optionally Convertible Unsecured Redeemable Debentures of Rs. 100/- each on 29.03.2011 and not compulsorily convertible debentures and holder of 1,50,000 Zero % Optionally Convertible Unsecured Redeemable Debentures of Rs. 100/- was Motlay Finance Pvt. Ltd. which was group company and not individuals etc.

x. The Applicant Company further submits that Rule 2(b)(iv) of the Companies (Acceptance of Deposits) Rules 1975, specifically excludes any amount received by one company from another company. Therefore, Optionally Convertible Unsecured Redeemable Debentures issued by the Applicant Company 1 to Motlay Finance Pvt. Ltd. which is a group company falls within the exemption set out in Rule 2(b)(iv) of the Companies (Acceptance of Deposits) Rules 1975.

xi. The Applicant Company 1 submits that even Rule 2(vi) Companies (Acceptance of Deposits) Rules, 2014 is pari materia to Rule 2(b)(iv) of the Companies (Acceptance of Deposits) Rules 1975, exempts any money received by company from any other company. Accordingly, optionally

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convertible unsecured redeemable debentures subscribed by a company will be covered and exempted under Rule 2(vi) Companies (Acceptance of Deposits) Rules, 2014. Therefore it is stated that Applicant Company 1 has not violated section 73(1) of the Companies Act, 2013.

xii. The Applicant Company 1 has issued the optionally convertible unsecured redeemable debentures on 29.03.2011 under section 117 of the Companies Act. General Circular No. 9/2002 dated 18.04.2002 issued by the Department Companies Affairs, has mandated only the manufacturing and infrastructure companies (and not other companies) to create the debenture redemption reserve as set out in section 117C of the Companies Act, 1956. Subsequently, Ministry of Corporate Affairs vide General Circular No. 04/2013 dated 11.02.2013 notified that all other companies including manufacturing and infrastructure companies shall create redemption reserve. Such notification was prospective in nature as understood by the Applicant Company 1. Further, section 71(4) of the Companies Act, 2013 specifies that the where debentures are issued by a company under said section, the company shall

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create a debenture redemption reserve account out of the profits of the company. Accordingly, it is mandatory for a company to create debenture redemption reserve account for redemption of the debentures issued under section 71 of the Companies Act, 2013 and the said section is not applicable to the debentures issued under section 117 of the Companies Act, 1956. Hence, for creation of debenture redemption reserve is not applicable to the Applicant Company 1. It is submitted that on approval of all the Schemes, Sunrays Properties & Investment Co. Pvt. Ltd. will emerge as the transferee entity and all the debentures issued by the group companies will be cancelled on merger of group entities holding the debentures with other entities.

xiii. It is further submitted that Section 293(1) of the Companies Act, 1956 is applicable only to public company and of a company which is a subsidiary of a public company. The Applicant Company 1 is a private company and neither a public company nor a subsidiary of a public company. Hence, section 293(1) of the Companies Act, 1956 will not be applicable to the Applicant Company 1.

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xiv. It is further submitted that no investigation proceedings have been instituted or pending in relation to the petitioner Companies and there is no objector of the Scheme as per Section 230(4) of the Companies Act, 2013.

9. The Official Liquidator has filed its report on 06.12.2019, wherein no specific objection has been raised against the approval of the scheme. It is submitted in the report that the Official Liquidator has not received any complaint against the proposed scheme from any person/party interested in the scheme in any manner and that the affairs of the transferor company does not appear to have been conducted in a manner prejudicial to the interest of its members or to public interest as per the provisions of the Companies Act, 1956/the Companies Act, 2013, whichever is applicable.

10. The Income Tax Department has filed its report on 08.06.2020, wherein with respect to Transferor Company, it is submitted that:

    a. The outstanding income tax demand against the transferor company for A.Y. 2017-18 is Rs. 150 u/s. 143(1) and for A.Y. 2019-20, 2018-19, 2016-17 and 2015-16 is NIL.

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b. It is further submitted that the Hon'ble Tribunal may leave open the issue of applicability of Section 72A of the Income Tax Act, 1961 to the transferor company so that any claim of carry forward losses or unabsorbed depreciation may be adequately ascertained by the Assessing Officer at the time of relevant assessment/re-assessment proceedings.

c. It is further submitted that the proposal of the scheme of arrangement may be accepted only after protecting the rights of the Revenue to examine the tax implication of all the companies with regard to the scheme of amalgamation, at the time of their respective assessment/ re-assessment proceedings.

d. The Income tax department has referred the decision of the Hon'ble Supreme Court in the case of Department of Income Tax vs. Vodafone Essar Gujarat Ltd and Anr. in Special Leave to Appeal (Civil) No. 29819/2012 vide order dated 15.04.2012, while upholding the order of the High Court which approved a scheme of amalgamation has held as follows:

"We only state that the Income Tax Department is entitled to

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take out appropriate proceedings for recovery of any tax statutorily due from the transferor or transferee company or any other person who is liable for payment of such tax due."

11. The Income Tax Department has filed another report on 20.08.2020, wherein with respect to Transferee Company, it is submitted that:

    a. The Assesse/Transferee Company has been regularly filing Income Tax Returns since 2007-08.

    b. There is no income tax proceedings and demands pending against the Transferee Company.

    c. It is further submitted that since the issue involved is the swapping of shares between the amalgamated company and amalgamating company, which would result into capital transfer, the assessee/ Transferee Company needs to clarify how the proposed scheme will not have any impact of exemption of capital gain tax. It is submitted that the assessee may be directed to furnish the accounts and information of the amalgamating and amalgamated companies as to satisfy compliance and applicability of Section 47 (vi) of the Income Tax Act, 1961.

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d. It is further submitted that this Hon'ble Tribunal may direct the assessee to provide the comments on the following observations which emerged on analysis of the valuation report:

i. Net asset method has been used for valuation of shares. However, no working for the same has been provided.

ii. As per the procedure mentioned in the valuation report, the major factor of valuation is dependent on the information provided by the management and it has not been mentioned whether the data provided by the management has been verified or not.

iii. On the basis of the valuation, it has been mentioned that by applying different method of valuation, different values are arrived but the values are not provided in the valuation report, in order to provide critical analysis. There is no clarity on adopting the net asset value method.

e. The Income tax department has again referred the decision of the Hon'ble Supreme Court in the case of Department of Income Tax vs. Vodafone Essar Gujarat Ltd and Anr. in Special Leave to Appeal (Civil) No. 29819/2012 vide order

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dated 15.04.2012.

12. Reserve Bank of India has not filed its report against the approval of the scheme.

13. The petitioner companies have filed an affidavit dated 13.06.2022, wherein it is submitted that the office of the Regional Director (NR) preferred the appeal before the Hon'ble NCLAT against the approval of Scheme of Amalgamation given by the Hon'ble NCLT, New Delhi, Bench VI and the Hon'ble NCLAT has dismissed the appeal, vide its order dated 04.04.2022. It is further submitted that after the dismissal of appeal filled by the office of Regional Director (NR) vide its order dated 04.04.2022 before the Hon'ble NCLAT, there is no issue remain unanswered.

14. In the petition, it has been affirmed that no proceedings for inspection, inquiry or investigation under the provisions of the Companies Act, 2013 or under the provisions of the Companies Act, 1956 are pending against the companies.

15. Certificates of respective statutory auditors of the companies have been placed on record to the effect that accounting treatment proposed in the Scheme of Amalgamation is in conformity with the accounting standard notified by the Central

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Government as specified under the provisions of Section 133 of the Companies Act, 2013 and Generally Accepted Accounting Principles in India (Indian GAAP), as the case may be.

16. In view of the foregoing, in view of the Judgement of the Hon'ble NCLAT, vide its order dated 04.04.2022 and upon considering the approval accorded by the members and creditors of the petitioner companies to the proposed scheme, as well as the objections filed by the regional director, northern region, the official liquidator, and the income tax department and being satisfied in view of affidavit of undertaking filed by the petitioner companies, there appears to be no impediment in sanctioning the present scheme. As far as the representation of Registrar of Companies is concerned, the Hon'ble NCLAT in its order dated 04.02.2022 has observed that the Registrar of Companies had duly approved the E-Form INC-28 filed and the status of transferor Company was changed in their record. Consequently, sanction is hereby granted to the scheme under section 230 & 232 of the Companies Act, 2013. The companies however remain bound to comply with the statutory requirements in accordance with law.

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17. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this court to the scheme, will not come in the way of action being taken, albeit, in accordance with law, against any of the concerned person, director and officials of the petitioners.

18. In compliance with requirement of section 230(7) of the Companies Act, 2013, the transferee company herein shall until the scheme is fully implemented, file with the Registrar of Companies, the statement in Form No. CAA.8 along with such fees as specified in the Companies (registration offices and fees) Rules, 2014 within two hundred and ten days from the end of each financial years.

19. While approving the scheme as above, we further clarify that this order should not be construed as an order in any way granting exemption from payment of stamp duty, taxes, GST, or any other charges, if any, and payment in accordance with law or in respect to any permission/ compliance with any other requirement which may be specifically required under any law.

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20. **THIS TRIBUNAL DO FURTHER ORDER(S):**

a) That the transferor company shall stand dissolved without following the process of winding up; and

b) That all the property, rights and powers of the transferor company, be transferred without further act or deed, to the transferee company and accordingly the same shall, pursuant to Section 232 of the Companies Act, 2013, be transferred to and vets in the transferee company.

c) That all the liabilities and duties of the transferor company, be transferred without further act or deed, to the transferee company and accordingly the same shall, pursuant to Section 232 of the Act, be transferred to and become the liabilities and duties of the transferee company; and

d) That all proceeding now pending by or against the transferor company, be continued by or against the transferee company; and

e) That all the employees of all the transferor company in service, on the date immediately preceding the date on which the scheme takes effect, i.e., the effective date, shall become the employees of the transferee company on such date without any break or

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interruption in services and upon terms and conditions not less favorable than those subsisting in the respective transferor company on the said date.

f) That petitioner companies shall within thirty days of the date of the receipt of this order cause a certified copy of this order to be delivered to the Registrar of Company for registration and on such certified copy being so delivered all the transferor company shall stand dissolved and the Registrar of Company shall place all documents relating to all the transferor company registered with him on the file kept by him in relation to the transferee company and the files relating to the petitioner companies shall be consolidated accordingly; and

g) That any person interested shall be at liberty to apply to the tribunal in the above matter for any directions that may be necessary.

The petition stands disposed of in the above terms.

RAHUL PRASAD BHATNAGAR
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(RAHUL BHATNAGAR)

MEMBER (Technical)

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(P. S. N. PRASAD)

MEMBER (Judicial)